

# LW6209E: PATENT PROCEDURES

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## Effective Term

Semester A 2026/27

## Part I Course Overview

### Course Title

Patent Procedures

### Subject Code

LW - Law

### Course Number

6209E

### Academic Unit

School of Law (FL)

### College/School

School of Law (FL)

### Course Duration

One Semester

### Credit Units

1.5

### Level

P5, P6 - Postgraduate Degree

### Medium of Instruction

English

### Medium of Assessment

English

### Prerequisites

Nil

### Precursors

Nil

### Equivalent Courses

Nil

### Exclusive Courses

Nil

## Part II Course Details

### Abstract

A patent is a legal document that, upon successful prosecution, conveys to the owner of the patent certain legal rights. The procurement of a patent requires specialized expertise to navigate the requisite procedures. This course seeks to offer this expertise by covering the following topics:

- Good business conduct
- The patent system of the Hong Kong SAR
- Patent prosecution in major jurisdictions, because pursuing patents across multiple jurisdictions expends market size and thus unlocks the value of inventions
- Filing strategies
- Responding to Office Actions, Opposition, and Revocation
- Freedom to operate.

### Course Intended Learning Outcomes (CILOs)

| CILOs |                                                                                                                                                                                                                                                                                                                                                                                                                                  | Weighting (if app.) | DEC-A1 | DEC-A2 | DEC-A3 |
|-------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------|--------|--------|--------|
| 1     | Identify, analyse and critically explain the substantive rules and legal framework concerning patent prosecution in Hong Kong and other related jurisdictions such as the PRC.                                                                                                                                                                                                                                                   |                     | x      | x      | x      |
| 2     | Analyse, compare and critically evaluate: <ul style="list-style-type: none"> <li>· issues and concerns in the field of patent prosecution;</li> <li>· the practical implications of the IP rules in patent prosecution; and</li> <li>· the operation of the substantive rules of IP protection.</li> </ul>                                                                                                                       |                     | x      | x      | x      |
| 3     | Apply the principles of IP law and relate domain analyses to solve patent prosecution problems by: <ul style="list-style-type: none"> <li>· researching on relevant issues and case law in Hong Kong and other relevant jurisdictions.</li> <li>· analysing and offering different strategic approaches concerning IP issues in business context.</li> <li>· communicating their solutions coherently and accurately.</li> </ul> |                     | x      | x      | x      |

#### A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

#### A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

#### A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

### Learning and Teaching Activities (LTAs)

| LTAs |                                                        | Brief Description                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | CILO No. | Hours/week (if applicable) |
|------|--------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|----------------------------|
| 1    | Seminars by the coordinator                            | <ul style="list-style-type: none"> <li>Students will acquire knowledge of the substantive rules of IP law in patent drafting/litigation through a comparative approach in Hong Kong and other jurisdictions.</li> <li>Students will be given guidance on their reading and research for their in-class and group project presentations.</li> <li>Students by responding to questions and performing exercises will develop their analytical and critical capabilities and discuss important issues pertaining to topics covered in the syllabus.</li> </ul> | 1, 2, 3  | 3                          |
| 2    | Guided Preparation & Presentation of Group IP Projects | <ul style="list-style-type: none"> <li>Students will research relevant case law</li> <li>Students will give presentations on selected topics in which they will scrutinise, analyse and evaluate issues and concerns in patent litigation and/or drafting</li> </ul>                                                                                                                                                                                                                                                                                        | 1, 2, 3  |                            |

**Assessment Tasks / Activities (ATs)**

| ATs |                                                                                                                                                                                                                                                                                                              | CILO No. | Weighting (%) | Remarks ("- for nil entry) | Allow Use of GenAI? |
|-----|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|---------------|----------------------------|---------------------|
| 1   | In-class Group Presentation<br>Students will be divided into several groups. Each group will be required to present in one class. Apart from the traditional slides-presentation, students are also encouraged to use other methods, such as interactive dialogues, in-class debates, surveys, and AI tools. | 1, 2, 3  | 30            | -                          | No                  |

|   |                                                                                                                                                                                                                             |         |    |                                                                                     |     |
|---|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------|----|-------------------------------------------------------------------------------------|-----|
| 2 | In-class Group Work<br>Students will be divided into several groups. Each group will be assigned some work to finish in class. The work may include answering questions, doing quizzes, or collaborating on small projects. | 1, 2, 3 | 20 | Depending on the instructors design, the use of Generative AI tools may be allowed. | Yes |
|---|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------|----|-------------------------------------------------------------------------------------|-----|

**Continuous Assessment (%)**

50

**Examination (%)**

50

**Examination Duration (Hours)**

2

**Minimum Continuous Assessment Passing Requirement (%)**

40

**Minimum Examination Passing Requirement (%)**

40

**Additional Information for ATs**

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter

Students must obtain a minimum mark of 40% in both coursework and examination and an overall mark of 40% in order to pass the course.

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

Students must obtain a minimum mark of 50% in both coursework and examination and an overall mark of 50% in order to pass the course.

**Assessment Rubrics (AR)****Assessment Task**

In-class Group Presentation (Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

**Criterion**

Quality of the presentations  
questions/comments/  
General attendance

**Excellent**

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

**Good**

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

**Fair**

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

**Marginal**

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

**Failure**

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

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**Assessment Task**

In-class Group Work (Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

**Criterion**

Quality of the presentations  
questions/comments/  
General attendance

**Excellent**

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

**Good**

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature and good presentation skills.

**Fair**

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material, and adequate presentation skills.

**Marginal**

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course and fair presentation skills.

**Failure**

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature and poor presentation skills.

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**Assessment Task**

Exam (Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

**Criterion**

Application of Law in factual/theoretical scenarios  
critical thinking in essay questions

**Excellent**

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

**Good**

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

**Fair**

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

**Marginal**

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

**Failure**

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

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**Assessment Task**

In-class Group Presentation (Applicable to students admitted from Semester A 2022/23 to Summer Term 2024)

**Criterion**

Quality of the presentations  
questions/comments/  
General attendance

**Excellent**

(A+, A, A-) High

**Good**

(B+, B) Significant

**Marginal**

(B-, C+, C) Moderate

**Failure**

(F) Inadequate

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**Assessment Task**

In-class Group Work (Applicable to students admitted from Semester A 2022/23 to Summer Term 2024)

**Criterion**

Quality of the presentations  
questions/comments/  
General attendance

**Excellent**

(A+, A, A-)

**Good**

(B+, B)

**Marginal**

(B-, C+, C)

**Failure**

(F)

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### **Assessment Task**

Exam (Applicable to students admitted from Semester A 2022/23 to Summer Term 2024)

### **Criterion**

Application of Law in factual/theoretical scenarios  
critical thinking in essay questions

### **Excellent**

(A+, A, A-) High

### **Good**

(B+, B) Significant

### **Marginal**

(B-, C+, C) Moderate

### **Failure**

(F) Inadequate

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## **Part III Other Information**

### **Keyword Syllabus**

- Good business conduct
- The patent system of the Hong Kong SAR and other major jurisdictions
- Procedures of patent prosecution
- Patent application filing strategy
- Patent drafting, including specification and claims
- Responding to Office Actions, Opposition, and Revocation
- Freedom to operate

### **Detailed Syllabus**

With a comparative reference to the patent regimes in the EU, UK, US, and the PRC, this course provides an overview of the patent system and patenting procedures in the Hong Kong SAR from a practice-oriented perspective. Keeping in mind the regional and international patent frameworks, specific will be examined and analysed. Strategies for the prosecution of patent rights in Hong Kong may be considered and discussed. Recent policy and industry developments relating to patent amendment in Hong Kong, patent reform in the PRC, EU and the development of regional and international trading negotiations and implications for patent protection etc., will be explored, where appropriate.

1. Introduction and Good business conduct
2. Hong Kong Patent System
3. Overview of patent prosecution in selected jurisdictions, mainly focusing on Mainland China and US:
  - a. Patent Corporation Treaty (PCT) and Paris Convention
  - b. Mainland China
  - c. US
  - d. EU
4. Filing strategies
5. Responding to Office Actions, Opposition and Revocation
6. Freedom to operate

## Reading List

### Compulsory Readings

| Title |                                                                                                                                                                                                              |
|-------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1     | Suggested Background Readings:                                                                                                                                                                               |
| 2     | Alan DURHAM, Patent Law Essentials: A Concise Guide, Praeger Publishers Inc, 2018                                                                                                                            |
| 3     | Douglas CLARK, Intellectual Property in Hong Kong, LexisNexis, 2024                                                                                                                                          |
| 4     | Saraswathy KRISHNANN, Butterworths Hong Kong patent law handbook. Patents Ordinance (Cap 514), 2023                                                                                                          |
| 5     | Kenny WONG & Alice LEE, Intellectual Property Law and Practice in Hong Kong, Sweet & Maxwell, 2012.                                                                                                          |
| 6     | Donald S. Rimai, A Guide for Implementing a Patent Strategy: How Inventors, Engineers, Scientists, Entrepreneurs, and Independent Innovators Can Protect Their Intellectual Property, Wiley-Scrivener, 2019. |
| 7     | David E. Pressman, Patent It Yourself : Your Step-by-Step Guide to Filing at the U.S. Patent Office, NOLO 20th edn, 2020.                                                                                    |
| 8     | David Hricik, Mercedes Meyer, Patent ethics: prosecution, Oxford University Press, 2009.                                                                                                                     |
| 9     | Muller MO and Mulder CAM, Proceedings before the European Patent Office: A Practical Guide to Success in Opposition and Appeal, Edward Elgar, 2015.                                                          |
| 10    | Additional readings will be provided to students in class as they become available.                                                                                                                          |

### Additional Readings

| Title |                                                                                                                                                                                                                                             |
|-------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1     | Weekly Readings:                                                                                                                                                                                                                            |
| 2     | To be specified and circulated by relevant weekly speakers ahead of time.                                                                                                                                                                   |
| 3     | Online Resources:                                                                                                                                                                                                                           |
| 4     | Intellectual Property Department, Hong Kong: <a href="http://www.ipd.gov.hk/eng/home.htm">http://www.ipd.gov.hk/eng/home.htm</a>                                                                                                            |
| 5     | Patent Basics, <a href="https://www.ipd.gov.hk/en/patents/patent-basics/index.html">https://www.ipd.gov.hk/en/patents/patent-basics/index.html</a>                                                                                          |
| 6     | Apply for a Patent, <a href="https://www.ipd.gov.hk/en/patents/apply-for-a-patent/index.html">https://www.ipd.gov.hk/en/patents/apply-for-a-patent/index.html</a>                                                                           |
| 7     | Hong Kong IP Journal – Patents, <a href="https://www.ipd.gov.hk/en/hkipjournal/index.html?cat=2&amp;section=patent">https://www.ipd.gov.hk/en/hkipjournal/index.html?cat=2&amp;section=patent</a>                                           |
| 8     | Patents Examination Guidelines, <a href="https://www.ipd.gov.hk/en/patents/patents-examination-guidelines/index.html">https://www.ipd.gov.hk/en/patents/patents-examination-guidelines/index.html</a>                                       |
| 9     | Patent system since December 2019 and New initiatives, <a href="https://www.ipd.gov.hk/en/patents/new-initiatives/index.html">https://www.ipd.gov.hk/en/patents/new-initiatives/index.html</a>                                              |
| 10    | Patents Ordinance (Cap. 514), <a href="https://www.elegislation.gov.hk/hk/cap514">https://www.elegislation.gov.hk/hk/cap514</a>                                                                                                             |
| 11    | WIPO:                                                                                                                                                                                                                                       |
| 12    | WIPO Patent Drafting Manual Second edition, <a href="https://www.wipo.int/edocs/pubdocs/en/wipo-pub-867-23-en-wipo-patent-drafting-manual.pdf">https://www.wipo.int/edocs/pubdocs/en/wipo-pub-867-23-en-wipo-patent-drafting-manual.pdf</a> |
| 13    | WIPO Strategy on Standard Essential Patents 2024-2026, <a href="https://www.wipo.int/publications/en/details.jsp?id=4719&amp;plang=EN">https://www.wipo.int/publications/en/details.jsp?id=4719&amp;plang=EN</a>                            |
| 14    | CNIPA:                                                                                                                                                                                                                                      |
| 15    | Patent procedure, 24th edition, <a href="https://www.epo.org/en/legal/guide-epc/2024/index.html">https://www.epo.org/en/legal/guide-epc/2024/index.html</a>                                                                                 |
| 16    | EPO:                                                                                                                                                                                                                                        |
| 17    | European Patent Guide: How to get a European patent, 24th edition, <a href="https://www.epo.org/en/legal/guide-epc/2024/index.html">https://www.epo.org/en/legal/guide-epc/2024/index.html</a>                                              |
| 18    | UKIPO:                                                                                                                                                                                                                                      |
| 19    | Apply for a patent, <a href="https://www.gov.uk/patent-your-invention/print">https://www.gov.uk/patent-your-invention/print</a>                                                                                                             |



|    |                                                                                                                           |
|----|---------------------------------------------------------------------------------------------------------------------------|
| 20 | USPTO:                                                                                                                    |
| 21 | Applying for patents, <a href="https://www.uspto.gov/patents/basics/apply">https://www.uspto.gov/patents/basics/apply</a> |